

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, PEOPLE,
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Public Redacted Outside-Counsel Investigation Memorandum — Exchanged Copy

United States District Court for the Eastern District of North Carolina

Rhea Calder v. Cinder Lake Health Network, Inc.

Civil Action No. SYN-EDNC-25-CV-0882

Public Exhibit DE29-1 — Exchanged January 29, 2026 outside CM/ECF; filed February 26, 2026

This is the public redacted counterpart of a twelve-page outside-counsel investigation memorandum. Cinder Lake gave Calder this counterpart on January 29, 2026 through an entitled-party offline exchange; that exchange was not a court filing. The counterpart was filed publicly on February 26 with Cinder Lake's opposition and sealing motion.

The complete synthetic counterpart was separately and provisionally lodged as an offline paper copy. This public document is independently readable and does not expose privileged text or imply electronic access to the complete counterpart.

Engagement and Questions Presented — Public Account

Fictional outside counsel Rowan Vale was retained on July 2, 2025 to direct a review of Calder's reports and advise Cinder Lake about compliance obligations, potential exposure, reporting considerations, and remediation. The memorandum organizes the resulting analysis.

Specific client questions, counsel's preliminary impressions, and legal recommendations are omitted from this public counterpart. The engagement's existence, timing, and general subject are disclosed so the reader can evaluate provenance without receiving the communication itself.

August 21 Disclosure and Waiver Analysis — Public Account

The memorandum evaluates whether Cinder Lake's August 21 response disclosed protected content. The letter said outside counsel reviewed Calder's reports, announced Cinder Lake's general conclusions, and described three remedial measures. It did not quote or summarize a client communication, witness communication, mental impression, recommendation, or legal analysis.

The remainder of counsel's waiver analysis is withheld as legal advice. This public account identifies the exact alleged disclosure and makes clear that Cinder Lake did not rely on an undisclosed instruction as a merits defense.

Method and Review Structure — Public Account

The review involved preservation, collection of ordinary business records, counsel-directed interviews, comparison of documentation exceptions, and evaluation of compliance controls. Those categories describe process rather than privileged substance.

Details revealing counsel's selection of sources, sequencing, lines of inquiry, credibility assessments, and evolving theories are omitted. Underlying nonprivileged facts may be discovered from their original sources; this surrogate does not convert counsel's organization of them into a public communication.

Historical Chronology — Public Account

Calder submitted reports on June 4 and June 18 and participated in a June 27 intake interview. Counsel was engaged July 2. Preservation and collection followed in July, interviews continued into August, remediation began before the August 21 external response, and Calder's employment ended September 12.

The public chronology provides dates already available in pleadings and business records. Embedded attorney analysis and witness-specific context are withheld. No omitted text should be inferred from paragraph length or spacing.

Source Communications — Public Account

The complete memorandum discusses communications gathered at counsel's direction from compliance, billing-control, supervisory, and human-resources personnel. This public counterpart identifies only those functional categories. It does not state who said what, reproduce an interview note, rank credibility, or reveal counsel's questions.

Calder's firsthand reports and ordinary-source testimony remain available through appropriate discovery. The redaction boundary protects the confidential communication to counsel and counsel's selection and synthesis, not independently knowable historical facts.

Documentary Record — Public Account

Counsel reviewed Calder's reports, selected exception summaries, relevant policies, training records, escalation materials, and employment documents. The public account lists document categories only. It does not reveal which item counsel considered decisive or how documents were connected in the legal analysis.

Cinder Lake has agreed to search for responsive ordinary records. Any production will be subject to relevance, proportionality, privacy, and document-specific protection. The category list is not a concession that every item in counsel's file is independently privileged.

Billing-Exception Findings — Public Account

The August 21 letter publicly stated the organization's conclusion: Calder's reports identified control weaknesses warranting correction, but the review did not substantiate a systemic practice of knowingly submitting unsupported claims. Some items required added documentation or supervisory attention.

The memorandum's underlying evidentiary discussion, legal characterization, and counsel-client advice are omitted. This page neither proves the public conclusion nor supplies a hidden alternative conclusion. It preserves the distinction between a corporate announcement and the communication used to advise the client.

Employment Events — Public Account

The memorandum separately addresses the chronology of Calder's protected reports, performance notice, reassigned meeting participation, and September discharge. Public pleadings state the competing positions: Calder alleges retaliation; Cinder Lake asserts independent performance reasons.

Witness-specific accounts, counsel's credibility assessments, and legal risk analysis are withheld. The public counterpart does not resolve the merits and does not make counsel's evaluation evidence merely because the employment topic is relevant.

Remediation Evaluation — Public Account

The complete memorandum evaluates revised escalation guidance, targeted training, and a new supervisory reconciliation step. The occurrence and dates of those actions are public. Counsel's assessment of adequacy, causation, and legal significance is not.

Nonprivileged implementation records may show what Cinder Lake did. They do not necessarily reveal why counsel recommended or evaluated an action. This page permits discovery planning while protecting the content of the legal communication.

Legal Risks and Recommendations — Public Account

This position corresponds to counsel's legal-risk analysis and recommendations. The protected text is replaced with a categorical description rather than fragments that could be reconstructed. Subjects include federal-program compliance, employment retaliation, preservation, reporting, and litigation response.

No recommendation is disclosed. Cinder Lake does not rely on the advice as a claim or defense. The January 9 Rule 502(d) order governs later litigation disclosures and does not decide the August 21 letter's earlier effect.

Conclusion and Public-Counterpart Certification

This counterpart preserves the complete memorandum's twelve logical subjects and page order while withholding protected communications and work product. It is not the complete memorandum and does not authorize access to the sealed counterpart.

Rowan Vale confirms only that the category descriptions correspond to the synthetic complete memorandum. Mara Voss certifies that this public counterpart was exchanged outside CM/ECF on January 29 and filed publicly on February 26, 2026. No complete sealed material was obtained from or uploaded through an electronic court-access system.